

BEFORE THE IOWA BOARD OF BEHAVIORAL SCIENCE

RE:
Mental Health Counselor License of

COURTNEY KILBERG
License No. 001540
Respondent

CASE NO. 18-0238

**COMBINED STATEMENT OF
CHARGES, SETTLEMENT
AGREEMENT, AND FINAL ORDER**

COME NOW the Iowa Board of Behavioral Science ("Board") and Courtney Kilberg ("Respondent"), 2656 Sheridan St, Sioux City IA 51103, and enter into this Combined Statement of Charges, Settlement Agreement, and Final Order ("Order") pursuant to Iowa Code sections 17A.10 and 272C.3(4), and 645 IAC 12. The Board has jurisdiction over Respondent and the subject matter of this case pursuant to Iowa Code chapters 17A, 147, 154D, and 272C, and 645 IAC 33.

A. STATEMENT OF CHARGES

COUNT I

1. Respondent is charged with violating section A.6.e. of the ACA Code of Ethics (2014) entitled "Nonprofessional Interactions or Relationships" and may be disciplined pursuant to Iowa Code section 147.55(9) and 645 IAC 33.2(1)"b".

B. FACTUAL CIRCUMSTANCES

2. Respondent holds mental health counselor license number 001540, which is currently active through September 30, 2020.

3. Respondent was employed as a mental health counselor in private practice.

4. Respondent provided family therapy to a client for approximately six months.

5. Respondent socialized with the client shortly after the discontinuation of family therapy.

C. SETTLEMENT AGREEMENT AND FINAL ORDER

6. The Board has jurisdiction over the parties and the subject matter of these proceedings.

7. Respondent admits the allegations in the Statement of Charges and acknowledges that the allegations, if proven in a contested case hearing, would constitute grounds for the discipline agreed to in this Order.

8. Execution of this Order constitutes the resolution of a contested case. Respondent has a right to hearing before the Board on the charges, but Respondent waives the right to hearing and all attendant rights, including the right to appeal or seek judicial review of the Board's action, by freely and voluntarily entering into this Order. Once entered, this Order shall have the force and

effect of a disciplinary order entered following a contested case hearing.

9. Respondent acknowledges that she has the right to be represented by counsel on this matter.

10. Respondent agrees that the State's counsel may present this Order to the Board and may have *ex parte* communications with the Board while presenting it.

11. This Order is subject to approval by a majority of the full Board. If the Board does not approve this Order, it shall be of no force or effect to either party, and shall not be admissible for any purpose in further proceedings in this matter. If the Board approves this Order, it shall be the full and final resolution of this matter.

12. This Order shall be part of Respondent's permanent record and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.

13. This Order shall not be binding as to any new complaints received by the Board.

14. Respondent understands the Board is required by federal law to report any adverse action to the National Practitioner Data Bank.

15. This Order, when fully executed, is a public record and is available for inspection and copying in accordance with the requirements of Iowa Code chapters 22 and 272C.

16. The Board's approval of this Order shall constitute a **FINAL ORDER** of the Board.

IT IS THEREFORE ORDERED:

17. Respondent is hereby **CITED** for violating the ACA Code of Ethics and **WARNED** that future violations of the laws and rules governing mental health counselors can result in further disciplinary action.

18. Within ninety (90) days, Respondent shall complete eight (8) hours of in-person continuing education related to ethics and professional boundaries. These continuing education hours are in addition to the hours required for license renewal and cannot be used to satisfy the continuing education required for any license renewal. Respondent shall provide copies of all certificates of completion to the Board as proof of successful completion of this requirement. Respondent is responsible for all costs associated with obtaining the required continuing education.

19. Respondent shall notify all current employers and any future prospective employers of this Order for any position that requires licensure as a mental health counselor (no later than at the time of an employment interview).

20. Respondent shall not serve as a supervisor for purposes of the supervised clinical experience required for licensure.

21. Should Respondent violate the terms of this Order, the Board may initiate action to impose other licensee discipline as authorized by Iowa Code chapters 147, 154D, and 272C and 645 IAC.

13 and 33.

8.19.19
Date

Courtney Kilberg
COURTNEY KILBERG
Respondent

This Combined Statement of Charges, Settlement Agreement, and Final Order is approved by the
Iowa Board of Behavioral Science on Sept. 12, 2019.

Donald Gibert by Tony Alden Board Executive
Chairperson
Iowa Board of Behavioral Science